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## ZAMBIA

### Human Rights Developments

With a persistent background of political polarization and economic problems, Zambia's human rights record remained poor. The independent media came under attack and human rights nongovernmental organizations (NGOs) and political opposition parties came under threat of deregistration.

The government continued to promise its bilateral donors that it wanted to improve its rights record. In its National Capacity Building Program for Good Governance document produced prior to the May 1999 World Bank Consultative Group meeting in Paris the government promised many reforms, but with no real sense of its priorities and no convincing demonstration of the government's commitment to good governance. As if to underscore the government's lack of transparency over this initiative, the good governance document only became public after the Consultative Group meeting.

This good governance document was weakened by the government's failure even to acknowledge initiatives such as the introduction of the State Security Bill in parliament in August, which would have created conditions amounting to a permanent state of emergency, had it been enacted. The bill provided for a suspect to be detained without charge for fourteen days and that the period of detention could be extended as many times as necessary with the authority of a magistrate. After stiff opposition from NGOs and back-bench members of parliament the bill was withdrawn.

On February 27, 1999, President Chiluba fired Foreign Affairs Permanent Secretary Dorothy Mulwila after her husband had become the UPND's deputy leader. All the opposition parties continued to face restrictions on their exercise of the freedom of association. The Public Order Act punished breaches and its provisions on unlawful assembly with it up to five years imprisonment and continued to be enforced with bias against the opposition parties. Opposition parties were either denied permission to assemble or had their meetings canceled on public security grounds. The ruling MMD continued to hold meetings, rallies, and pro-government demonstrations without permits.

In May 1999 the administrator of the Show Society of Zambia ordered the UPND out of the Show Ground. The Show Society claimed that it had a policy of not allowing political parties to operate in the grounds, yet the MMD operated from the same premises in 1991 prior to the multiparty elections.

Teddy Nondo continued to serve as Deputy Commissioner of the Drug Enforcement Commission despite accusations that he carried out torture in 1997. The Human Rights Commission recommended, in its March 30, 1998 report on allegations of torture of detainees following the 1997 coup attempt, that officers accused of the offense of torture-including Nondo-be retired in the public interest but advised against instituting criminal proceedings. Torture was forbidden, by article 15 of the Zambian Constitution and after some foot dragging, the government withdrew the reservations it had entered on the Convention against Torture, Cruel, and Inhuman Treatment (CAT), on February 19.

Reports of police torture continued. On August 2, twenty-six-year old Violet Tembo died after being tortured by police officers at Lusaka's Los Angeles Police Post. Tembo, eight months pregnant, was detained on July 23 and released on July 27. She was detained to assist police in locating her husband, Ackim Ngoma, a security guard at Galaun Holdings Ltd. After investigations and inquiries by the

Zambian based NGO AFRONET, Police Officers Nyimbiri and Mfuzi, accused of torturing Nchimunya, were arrested.

On March 10 and 11, six journalists from the Post newspaper were detained by the police for publishing a story headlined "Angola Worries Zambia Army." The story criticized Zambia's military capability and preparedness in the face of a possible military attack from Angola. All the reporters, including editor-in-Chief Fred M'membe, were later charged with "espionage". Although their case was committed to the High Court on April 16 no date was set for trial. The government's intention was questioned as two of the journalists, Lubasi Katundu and Amos Malupenga, were on leave at the time of their arrest while Rueben Phiri and Mukalya Nampito were out of the country.

The Zambia Human Rights Commission remained active on noncontroversial issues. It continued to issue statements about human rights abuses, notably employment grievances and prison conditions, but avoided direct criticism of the government. Of the 960 complaints handled since inception, 797 of the cases were labor related.

### **Defending Human Rights**

Various NGOs monitored and reported on human rights violations. AFRONET published its second detailed annual human rights report in 1999. A one-day review meeting of Zambia's governance performance was held by NGOs in Lusaka in May. The meeting concluded with a communiqué issued prior to the World Bank Consultative Group meeting in Paris. On return from Paris, then Finance Minister Edith Nawakwi attacked these NGOs without mentioning their names. The government-controlled print media criticized the Zambia Independent Monitoring Team (ZIMT) and AFRONET for campaigning against Zambia's donor efforts.

### **Role of the International Community**

Throughout 1999, the Southern African Development Community (SADC) was steadfast in support of President Fredrick Chiluba's mediation efforts in the war in the Democratic Republic of Congo (DRC). The European Union and the United States also supported the Zambian government's efforts, which had the blessing of the Organization of African Unity (OAU) and the U.N. Security Council.

In May 1999, Zambia's cooperating partners emphasized the immediate importance of good governance, including the protection of human rights, freedom of the press, fighting corruption, and institutional capacity building. Premised on satisfactory economic and governance performance, Zambia's external partners disclosed plans to make available at least U.S.\$240 million in balance of payment (BOP) support, and an additional U.S.\$390 million in project assistance. By September 1999, bilateral donors had not disbursed all the pledged balance of payment support. The May 1999 Consultative Group meeting agreed to hold the next round of talks in Lusaka.

The World Bank for two years running had linked Zambia's aid program to progress in economic reform and governance. The World Bank claimed that significant progress had been made in economic reform, but identified governance related issues, the privatization of the remaining assets of the Zambian Consolidated Copper Mines (ZCCM), and civil service reform as top items for urgent action. The Zambian government, again, was urged to take swift and decisive action on alleged human rights violations associated with police interrogations and accusations of torture in the aftermath of the October 1997 coup attempt. So far, no action has been taken against any officer. Rather, High Court Judge Japhet Banda sentenced fifty-nine of those accused in relation to the coup attempt, to death on September 17.

The release of additional funds by major donors was conditional on the outcome of a commission of inquiry set up by the government to investigate the alleged torture after the 1997 coup attempt. Judge Japhet Banda, headed the commission and had yet to begin the inquiry.

### **European Union, Norway, Canada, and Japan**

The European Union has responded more favorably to Zambia's economic recovery program during the year. In August the E.U. released U.S.\$44.1 million for the structural adjustment program and

reconstruction of roads. Germany released half of a U.S.\$10.5 million grant for debt relief that had been withheld since 1996.

The United Kingdom, while emphasizing the importance of upholding democracy and human rights, canceled U.S.\$75.5 million of the debt owed to the U.K. and rescheduled for twenty-four years repayment to U.S.\$106.6 millions. The U.K. pledged U.S.\$20 million at the last Consultative Group meeting to be linked to real progress in the sale of Zambia Consolidated Copper Mines (ZCCM). The U.K. indicated willingness to contribute towards implementing the Capacity Building for Good Governance document through the Department for International Development (DFID).

Scandinavian governments maintained that they would only release balance of payment support to Zambia if the Zambian government stood by its promises to improve its human rights and governance record. Denmark had for two years running not released balance of payments support, citing lack of adherence to good governance standards, and lack of respect for human rights as a major obstacle. The Danish Ambassador to Zambia Mads Saandau-Jensen noted that "the Danish government has placed emphasis on good governance and human rights as a condition in previous meetings."

In August, the Japanese government also released U.S.\$36 million in balance of payment support but at the same time called for an improved human rights record.

## **United States**

The United States policy focused on Zambia's economic recovery program and efforts to promote democracy. The U.S. is not a major donor to Zambia. In March, the U.S. signed an agreement for \$20 million in fresh assistance towards improvement of the health sector with particular emphasis on HIV/Aids and immunization.

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